

24STCV21452 24STCV21452

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-08-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C08%2F04%2F2026

Source SHA-256: 734b7a048412ac6f693349d883974ab46384ff507007f710e2748dd2e7b46ff6

Case Number: 24STCV21452 Hearing Date: August 4, 2026 Dept: 414

24STCV21452

Rivera v. Anastasia Beverly Hills, LLC, et al.

Tuesday,

August 4, 2026

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO SEAL EXHIBITS IN SUPPORT OF ITS OPPOSITION TO PLAINTIFF'S MOTION TO QUASH OR MODIFY SUBPOEAS FOR PLAINTIFF'S EMPLOYMENT RECORDS (1597)

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO SEAL EXHIBITS IN SUPPORT OF ITS OPPOSITION TO PLAINTIFF'S MOTION TO QUASH OR MODIFY SUBPOEAS FOR PLAINTIFF'S EMPLOYMENT RECORDS (4668)

I. BACKGROUND

This

action arises from alleged retaliation, discrimination, and sexual harassment in violation of the Fair Employment and Housing Act and the Labor Code.

Plaintiff also alleges (1) retaliation in violation of the Labor Code; violations under the Fair Employment and Housing Act ("FEHA") for (2) sex discrimination, (3) sexual harassment, (4) hostile work environment, (5) retaliation, (6) failure to prevent harassment, discrimination, or retaliation; and tort claims for (7) negligent supervision, hiring, and retention; (8) intentional infliction of emotional distress; and (9) wrongful termination in violation of public policy.

A.

Res. No. 1597

Defendant requests that the court seal selected exhibits conditionally filed under seal in support of its opposition to Plaintiff's Motion to Quash or Modify Subpoenas for Plaintiff's Employment Records. The selected exhibits are:

1. Exhibit 2: Excerpts from the confidential portion of the transcript from Plaintiff's November 8, 2025, deposition;

2.
Exhibit 3: Plaintiff's therapy notes from March 13, 2023, from MDLive;

3.
Exhibit 4: Plaintiff's therapy notes from March 2, 2022, from MDLive; and

4.
Exhibit 9: Plaintiff's June 21, 2021, Separate Authorization for Release of Information and Waiver of Potential Claims.

Defendant argues the exhibits contain Plaintiff's personal and private information including medical information. The court signed a protective order for confidential information on December 16 and 19, 2025. An order to seal the selected exhibits will uphold the court's order to protect confidential information.

No opposition has been filed.

B.
Res. No. 4668

Defendant files a second motion to seal exhibits in response to Plaintiff's Motion to Quash or Modify Subpoenas for Plaintiff's Education Records and Pharmacy Records. The selected exhibits are:

1.

Exhibit 1: Plaintiff's medical
records from Dr. Khedia on March 10, 2022;

2.

Exhibit 2: Plaintiff's medical
records from Dr. Khedia on March 10, 2023;

3.

Exhibit 3: Plaintiff's therapy
records from MD Live on April 17, 2023;

4.

Exhibit 5: Plaintiff's therapy
records from MD Live on February 4, 2022;

5.

Exhibit 6: Plaintiff's medical
records from Dr. Khedia on October 21, 2022;

6.

Exhibit 7: Plaintiff's medical
records from Dr. Khedia on January 18, 2023;

7.

Exhibit 9: Excerpts from the
transcript from the confidential portion of Plaintiff's

November 8, 2025, deposition;

8.

Plaintiff's therapy records from
MD Live on November 9, 2021

9.

Exhibit 11: Plaintiff's therapy
records from MD Live on March 3, 2023.

II. DISCUSSION

Court

records are presumed to be open. (Cal. Rules of Court, 2.550 subd. (c).)

The burden is on the moving party to show compelling reasons for sealing records. (Mary R. v. B. & R. Corp. (1983)

149 Cal.App.3d 308, 317.) To support

an order to seal records, the court must find that "(1) there is an overriding interest supporting sealing records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the proposed sealing is narrowly tailored to serve the overriding interest; and (4) there is no less

restrictive means of achieving the overriding interest." (McNair v. National Collegiate Athletic Assn. (2015) 234 Cal.App.4th 25, 29; Cal. Rules of Court, Rule 2.550

subd. (d).)

Defendant

has shown that the protection of private and personal information may serve as

an overriding interest that outweighs the public's right to court records. (Pettus v. Cole (1996) 49

Cal.App.4th 402, 440. ["The right to control

circulation of personal information is fundamental."].) The right of

privacy is protected by the California Constitution and includes informational

privacy such as sensitive or confidential information, the dissemination of

which is precluded. (Ruiz v. Podolsky (2010) 50

Cal.4th 838, 850.)

The

proposed sealing is narrowly tailored to serve an overriding interest. There is

no less restrictive means of protecting Plaintiff's overriding privacy

interests.

III. CONCLUSION

Based

on the foregoing, Defendant's two motions to seal selected exhibits are

GRANTED.